

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #04	CCRB Case #: 201604265	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 05/16/2016 8:30 PM	Location of Incident: In front of § 87(2)(b) and inside the 41st Precinct stationhouse	18 Mo. SOL 11/16/2017	Precinct: 41
Date/Time CV Reported Tue, 05/17/2016 3:37 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/17/2016 3:37 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			041 PCT
2. LT Raymond Meyer	00000	925742	041 PCT
3. POM Lawrence Sanchez	26252	942502	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Wojciech Czech	17253	954684	041 PCT
2. POM Jose Torres	10511	946334	041 PCT
3. SGT Miroslav Maric	02674	932957	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Raymond Meyer	Abuse: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer stopped § 87(2)(b)	A . Substantiated
B . POM Lawrence Sanchez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Lawrence Sanchez stopped § 87(2)(b)	B . Substantiated
C . POM Lawrence Sanchez	Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Lawrence Sanchez spoke discourteously to § 87(2)(b)	C . Alleged Victim Uncooperative
D . LT Raymond Meyer	Abuse: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer arrested § 87(2)(b)	D . Substantiated
E . LT Raymond Meyer	Force: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer used physical force against § 87(2)(b)	E . Exonerated
F . POM Lawrence Sanchez	Force: At § 87(2)(b) in the Bronx, Police Officer Lawrence Sanchez used physical force against § 87(2)(b)	F . Exonerated
G . LT Raymond Meyer	Force: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer used pepper spray against § 87(2)(b)	G . Exonerated
H . LT Raymond Meyer	Abuse: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer arrested § 87(2)(b) and § 87(2)(b)	H . Substantiated

Officer(s)	Allegation	Investigator Recommendation
I . LT Raymond Meyer	Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer spoke discourteously to § 87(2)(b)	I . Alleged Victim Uncooperative
J . LT Raymond Meyer	Force: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer used pepper spray against § 87(2)(b) and § 87(2)(b)	J . Exonerated
K . LT Raymond Meyer	Abuse: At the 41st Precinct stationhouse, Lieutenant Raymond Meyer strip-searched § 87(2)(b)	K . Alleged Victim Uncooperative
L . LT Raymond Meyer	Force: At the 41st Precinct stationhouse, Lieutenant Raymond Meyer used physical force against § 87(2)(b)	L . Alleged Victim Uncooperative
M . An officer	Discourtesy: At the 41st Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	M . Alleged Victim Uncooperative
N . An officer	Abuse: At the 41st Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.	N . Alleged Victim Uncooperative
O . An officer	Force: At the 41st Precinct stationhouse, an officer used physical force against § 87(2)(b)	O . Alleged Victim Uncooperative

Case Summary

This case is being submitted past the 90-day benchmark due to significant delays caused by difficulties obtaining statements from two FDNY EMS witnesses.

§ 87(2)(g)

On May 17, 2016, § 87(2)(b) filed this complaint with the CCRB by telephone (BR 01).

On May 16, 2016, at approximately 8:30 p.m., in front of § 87(2)(b), Lt. Raymond Meyer and PO Lawrence Sanchez of the 41st Precinct stopped § 87(2)(b) cousin, § 87(2)(b) (Allegations A and B).

§ 87(2)(b) her husband, § 87(2)(b) and her brother-in-law, § 87(2)(b) gathered at the scene. § 87(2)(b) filmed a portion of this incident on her cell phone. When § 87(2)(b) asked why § 87(2)(b) had been stopped, PO Sanchez allegedly told § 87(2)(b) “I don’t need to tell you shit” (Allegation C).

Lt. Meyer arrested § 87(2)(b) for disorderly conduct: obstructing traffic and resisting arrest (Allegation D) (BR 02). In the course of effecting this arrest, Lt. Meyer and PO Sanchez brought § 87(2)(b) to the ground (Allegations E and F). Once on the ground, Lt. Meyer allegedly pepper sprayed § 87(2)(b) (Allegation G).

PO Sanchez requested additional units to the scene. When they arrived, Lt. Meyer instructed them to arrest § 87(2)(b) and § 87(2)(b) for obstructing governmental administration (Allegation H) (BR 03-05). Lt. Meyer then told § 87(2)(b) to “shut the fuck up,” (Allegation I) before pepper spraying § 87(2)(b) and § 87(2)(b) in quick succession (Allegation J). PO Sanchez told § 87(2)(b) “I told y’all to back the fuck up and you didn’t back the fuck up so all y’all are going to jail” (subsumed under Allegation C).

Upon arrival to the 41st Precinct stationhouse, § 87(2)(b) was allegedly strip-searched (Allegation K). § 87(2)(b) was initially escorted to a private holding cell at the rear of the stationhouse. Officers under the supervision of Lt. Meyer dragged § 87(2)(b) on the floor from this private holding cell to the general population holding cell at the front of the stationhouse (Allegation L).

§ 87(2)(b) requested that officers escort him from the holding cell to the bathroom. An unidentified officer told him, “Hold the fuck on,” and, “Wait a fucking minute.” (Allegation M) The officer also threatened to “fuck § 87(2)(b) up.” (Allegation N) Officers eventually came to escort § 87(2)(b) to the bathroom. As they placed § 87(2)(b) back into handcuffs to bring him to the bathroom, the same unidentified officer kned § 87(2)(b) in his groin, and then bent him forward and kned him twice in his face (Allegation O).

§ 87(2)(b) provided a total of three video files of this incident (BR 06-08), only one of which is relevant to the allegations (BR 56) and is included below.

IAB provided video footage of this incident (BR 09-10), but it is too blurry and distant from the scene § 87(2)(g) (see BR 11 for a summary of all video obtained by the investigation).



2016-10-28_14-12-18.mp4

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to the arrests.
- On October 27, 2016, a Notice of Claim request was submitted to the Comptroller's office. The results will be added to the case file upon receipt (BR 12).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
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[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one previous CCRB complaint (BR 17):
 - § 87(2)(b) [REDACTED]
[REDACTED]
- § 87(2)(b) was also listed as a complainant in CCRB case § 87(2)(b) [REDACTED]
[REDACTED]
- This is the only CCRB complaint associated with § 87(2)(b) (BR 19).
- This is the only CCRB complaint associated with § 87(2)(b) (BR 20).
- Lt. Meyer has been a member of the service for 16 years. There are 12 prior allegations against him stemming from six cases that occurred between 2004 and the present, none of which has been substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Sanchez has been a member of the service for 10 years. There are 22 prior allegations against him stemming from 12 cases that occurred between 2008 and the present, none of which has been substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Potential Issues

- Field work was performed on May 18, 2016 (BR 20), and on June 8, 2016 (BR 21), which yielded negative results for video footage from § 87(2)(b) and neighboring buildings at § 87(2)(b).
- § 87(2)(b) provided two video files she recorded of this incident. One of these files is relevant to the investigation (BR 56, see above file labeled 2016-10-28_14-12-18). The other, which is only three seconds long and does not depict any police officers or misconduct (BR 07), § 87(2)(g).
- § 87(2)(b) provided a third video file that § 87(2)(b) recorded on his cell phone (BR 08). As it is essentially a duplicate of the footage that § 87(2)(b) recorded, this video file has also not been discussed in this report.
- § 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b) On June 7, 2016, IAB furnished the CCRB with two video files they had obtained during a canvass across the street from the incident location at § 87(2)(b) (BR 09) and (BR 10). § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b).
- On May 19, 2016, § 87(2)(b) provided a partial telephone statement. § 87(2)(b) abruptly terminated the call before further details could be obtained or an appointment could be scheduled, though he promised to call the CCRB back on May 20, 2016. § 87(2)(b) did not call back as promised and did not respond to four additional voice messages left for him between May 23, 2016, and June 2, 2016, nor did he respond to two please-call letters mailed to him on May 19, 2016, and May 31, 2016, and a missed-appointment letter mailed to him on June 10, 2016. As will be discussed in greater detail below, attempts were made to schedule § 87(2)(b) through § 87(2)(b). § 87(2)(b) promised to bring § 87(2)(b) with him to his three scheduled appointments, but neither § 87(2)(b) nor § 87(2)(b) appeared for these interviews. Between May 31, 2016, and June 7, 2016, three calls were placed to § 87(2)(b) who promised to have § 87(2)(b) contact the CCRB, but he never did so. As § 87(2)(b) has not responded to contact attempts, the investigation was not able to obtain a sworn statement from him.
- On May 19, 2016, a voice message was left for § 87(2)(b) and a first please-call letter was mailed to him. On May 23, 2016, contact was established with § 87(2)(b) who provided a telephone statement and scheduled an in-person statement for June 2, 2016. On June 2, 2016, before this scheduled appointment, § 87(2)(b)'s wife called the CCRB and said he would not be able to appear. § 87(2)(b) was rescheduled to appear on June 7, 2016. § 87(2)(b) did not appear for this second scheduled appointment and did not call to cancel. On June 7, 2016, § 87(2)(b) rescheduled to appear at the CCRB on June 10, 2016. On June 7, 2016, a second letter was mailed to § 87(2)(b) which included his new appointment details. § 87(2)(b) did not appear for this third scheduled interview and did not call to cancel, nor did he respond to an additional contact attempt on June 10, 2016. On June 13, 2016, the investigation again established contact

with § 87(2)(b) who rescheduled to appear on June 16, 2016. § 87(2)(b) did not appear for this fourth scheduled appointment and did not call to cancel. As such, the investigation was not able to obtain an in-person statement from him.

- On June 29, 2016, a subpoena for the in-person testimonies of EMT § 87(2)(b) and EMT § 87(2)(b) who responded to the 41st Precinct stationhouse to treat § 87(2)(b) and § 87(2)(b) was sent to FDNY. EMT § 87(2)(b) and EMT § 87(2)(b) did not appear at the CCRB on July 8, 2016, the date specified on the subpoena. On July 8, 2016, and July 11, 2016, two calls were placed to § 87(2)(b) at FDNY, who promised to follow up. On July 15, 2016, EMT § 87(2)(b) contacted the CCRB and said that he had no specific recollection of this incident. An attempt was made to schedule EMT § 87(2)(b) for an in-person statement so that documents such as the Ambulance Call Report could be shown to him in an attempt to refresh his recollection. EMT § 87(2)(b) said he would be out of town for a few weeks but would contact the CCRB upon his return. EMT § 87(2)(b) did not contact the CCRB as promised, and EMT § 87(2)(b) did not contact the CCRB at all. Between July 18, 2016, and July 19, 2016, two further attempts were made to follow up with FDNY. On July 21, 2016, EMT § 87(2)(b) contacted the CCRB but did not leave a message, and was identified solely through caller ID. Between July 21, 2016, and August 11, 2016, six voice messages were left for EMT § 87(2)(b). Between August 1, 2016 and August 11, 2016, three voice messages were left for EMT § 87(2)(b). Between August 1, 2016, and August 11, 2016, six attempts were made to follow up with § 87(2)(b). Eventually, on August 11, 2016, § 87(2)(b) had EMT § 87(2)(b) contact the CCRB. EMT § 87(2)(b) scheduled an appointment for August 15, 2016. While the undersigned was on vacation on August 12, 2016, EMT § 87(2)(b) called and cancelled her appointment, and did not respond to two subsequent voice messages left with her on August 15, 2016, and August 17, 2016. On August 11, 2016, EMT § 87(2)(b) contacted the CCRB and said he would need to check his schedule before selecting a time for an appointment, but also did not respond to two further messages left for him on August 15, 2016, and August 17, 2016. Between August 17, 2016, and August 26, 2016, four attempts were made to follow up with § 87(2)(b) at FDNY and her supervisor, § 87(2)(b). On August 29, 2016, an FDNY Investigator, § 87(2)(b) contacted the CCRB and said that he was investigating the matter and would contact the CCRB with any updates. As of October 3, 2016, § 87(2)(b) said the matter was still under investigation but that he would contact the CCRB once he established contact with EMT § 87(2)(b)s and EMT § 87(2)(b)s Captain to schedule them for an appointment. As such, the investigation was severely delayed and ultimately was not able to obtain in-person statements from EMT § 87(2)(b) and EMT § 87(2)(b).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Discourtesy:** § 87(2)(b) described the officer who allegedly told him, “I don’t need to tell you shit,” and, “I told y’all to back the fuck up and you didn’t back the fuck up so all y’all are going to jail,” as a plainclothes Hispanic male with a black goatee and

moustache, with a medium build, weighing about 145 to 150 pounds, and between 32 and 33 years old, a description most closely matching that of PO Sanchez (BR 24). § 87(2)(b) identified the officer who allegedly told him, “Shut the fuck up,” by name as Lt. Meyer. § 87(2)(g)

- **Strip search:** § 87(2)(b) alleged that he was strip-searched. Lt. Meyer denied authorizing a strip search of § 87(2)(b) nor was any strip search documented in the command log (BR 55). § 87(2)(g)
- **Force:** § 87(2)(b) alleged that multiple officers, including Lt. Meyer, used physical force against him at the 41st Precinct stationhouse. § 87(2)(g)
- **Discourtesy, Threat of Force, Force:** § 87(2)(b) alleged that inside the 41st Precinct stationhouse, an officer, described as a white male, dressed in casual plainclothes, about 5’7” to 5’8” tall, 230 pounds, with stocky or muscular build, freckles, and green or blue eyes, told him, “Hold the fuck on,” “Wait a fucking minute,” “I’ll fuck § 87(2)(b) up,” and kneed him three times. This description does not present a close match to any officer identified by the investigation. None of the officers interviewed acknowledged committing these allegations. § 87(2)(b) did not provide a sworn statement. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

- § 87(2)(g)
- § 87(2)(g)
- **Force:** § 87(2)(b) thought officers brought § 87(2)(b) onto the ground in the course of effecting her arrest, but § 87(2)(b) did not herself allege this, § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer stopped § 87(2)(b)

Allegation B – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Lawrence Sanchez stopped § 87(2)(b)

It is undisputed that Lt. Meyer and PO Sanchez stopped § 87(2)(b)

In his telephone statement (BR 28), § 87(2)(b) said that he was sitting on the steps in front of § 87(2)(b) in the Bronx when officers approached him. § 87(2)(b) does not live in the building, but his cousin, § 87(2)(b) does. There are approximately seven steps leading from the sidewalk to the front entrance of § 87(2)(b) (BR 29). § 87(2)(b) was sitting near the bottom of the steps, about seven or eight feet from the entrance. § 87(2)(b) denied that he ever blocked the stairs or entrance of § 87(2)(b). § 87(2)(b)'s cousin, § 87(2)(b) was in front of the building, sitting in his vehicle, which was parked at the curb. § 87(2)(b) was also present, but at the time the officers approached had gone into the building to retrieve cleaning supplies to wash § 87(2)(b)'s vehicle. § 87(2)(b)'s wife, § 87(2)(b) had also been present in front of the building, but had left to go to the bodega on the corner of § 87(2)(b).

While seated on the front steps, § 87(2)(b) saw two officers, identified by the investigation as PO Sanchez and Lt. Meyer, drive past in an unmarked black vehicle. Lt. Meyer, who has arrested § 87(2)(b) in the past, stared at him as he drove by. Lt. Meyer stopped the

vehicle. § 87(2)(b) moved to get off of the steps. Before he could do so, Lt. Meyer approached, grabbed § 87(2)(b) by the front of his shirt, and moved him to the wall bordering the sidewalk next to the steps.

As was previously discussed, § 87(2)(b) abruptly terminated his telephone statement. The investigation was never again able to establish contact with § 87(2)(b) and certain statements he made over the phone were consequently never clarified and no in-person statement was obtained from him.

§ 87(2)(b) (BR 30-32) said that at the time of this incident he was sitting in his vehicle, which was parked at the curb in front of § 87(2)(b). § 87(2)(b) was sitting at the bottom of the steps in front of the location. § 87(2)(b) was off to one side of the steps, slouching against the wall. § 87(2)(b) had been hanging out in front of the building since approximately 2 p.m. that day, but had never blocked anyone from going in or out of § 87(2)(b). § 87(2)(b) saw PO Sanchez and Lt. Meyer drive past the location. PO Sanchez and Lt. Meyer stopped their vehicle by a hydrant in front of § 87(2)(b), exited, and began walking towards § 87(2)(b). § 87(2)(b) tried to warn § 87(2)(b) of their approach, saying, § 87(2)(b) get up, come towards me.” § 87(2)(b) seemed not to hear § 87(2)(b) as he remained where he was until Lt. Meyer and PO Sanchez were directly in front of him. § 87(2)(b) seemed startled when he saw them, and jumped up from the steps. § 87(2)(b) did not see § 87(2)(b) attempt to run away. Once § 87(2)(b) stood up, Lt. Meyer grabbed him by placing his left forearm against § 87(2)(b)'s upper chest, grabbing § 87(2)(b)'s forearm with his right hand, and then pushing § 87(2)(b) back-first against the wall next to the steps. Lt. Meyer continued to hold § 87(2)(b) in this fashion. Lt. Meyer did not say anything to § 87(2)(b).

In his telephone statement (BR 36) § 87(2)(b) said that he was inside of § 87(2)(b) retrieving cleaning supplies. From the window of § 87(2)(b)'s grandmother's apartment inside of § 87(2)(b), § 87(2)(b) saw PO Sanchez and Lt. Meyer walking towards the building. By the time § 87(2)(b) exited § 87(2)(b), Lt. Meyer and PO Sanchez already had § 87(2)(b) stopped. Lt. Meyer was holding § 87(2)(b) by the front of his shirt, with § 87(2)(b)'s back against the wall next to the steps of § 87(2)(b).

§ 87(2)(b) (BR 33-35) said that she was in front of § 87(2)(b) with § 87(2)(b). They were in § 87(2)(b)'s vehicle, which was parked at the curb in front of the building. They were planning on washing § 87(2)(b)'s vehicle. § 87(2)(b) was sitting on the steps in front of § 87(2)(b). § 87(2)(b) was seated at the bottom of the steps, sitting close to the wall that borders the steps. § 87(2)(b) was not impeding anyone from coming in or out of the building. § 87(2)(b) left to go to the bodega at the corner of § 87(2)(b). § 87(2)(b) was gone for approximately 10 minutes. As she walked back to § 87(2)(b), § 87(2)(b) saw Lt. Meyer and PO Sanchez walking towards where § 87(2)(b) was seated on the steps. § 87(2)(b) called out for § 87(2)(b) to stand up. As soon as § 87(2)(b) stood up, Lt. Meyer grabbed § 87(2)(b) by the front of his shirt.

None of the video footage obtained by the investigation depicts the circumstances leading to the stop of § 87(2)(b) (BR 06-11).

Lt. Meyer (BR 37-38) said that he was conducting Anti-Crime patrol when he saw § 87(2)(b) sitting on the steps in front of § 87(2)(b). Lt. Meyer had prior knowledge of § 87(2)(b) is a drug dealer. Lt. Meyer knew this as approximately a week and a half to two weeks before this incident, Lt. Meyer had authorized an arrest of § 87(2)(b) made by one of his officers, in the lobby of § 87(2)(b), in which § 87(2)(b) had been found with a large quantity, or approximately 20 grams, of crack cocaine and marijuana. A BADS search

confirmed that § 87(2)(b) was arrested on § 87(2)(b) inside of § 87(2)(b), by PO Shamere Boland of the 41st Precinct, and was found to be in possession of approximately 15 plastic Ziploc bags and 28 plastic bags of crack cocaine, and that his arrest was authorized by Lt. Meyer (BR 16).

Lt. Meyer also noted that in the year and a half that he has worked in the 41st Precinct, he has come to know § 87(2)(b) as a drug- and violence-prone location. Officers under Lt. Meyer's supervision have made numerous arrests at that location for narcotics-related activities, and there are often reports of shots fired in that area. § 87(2)(f)

When Lt. Meyer first noticed § 87(2)(b) on this date, § 87(2)(b) was seated directly in the middle of the steps leading up to § 87(2)(b). § 87(2)(b) did not appear to be doing anything in particular while on the steps except sitting. Lt. Meyer did not personally observe any individuals come into or out of § 87(2)(b) at this time. Prior to the stop, PO Sanchez informed Lt. Meyer that he had seen a person have to walk around § 87(2)(b) to get past him. PO Sanchez did not provide further information, such as whether this person was coming into or out of the building.

Based upon PO Sanchez's observation, Lt. Meyer believed that § 87(2)(b) had committed the violation of disorderly conduct by obstructing pedestrian traffic, and therefore decided to approach him. Lt. Meyer also suspected that § 87(2)(b) may have been dealing drugs from the location, based upon his prior knowledge of § 87(2)(b) and the way that § 87(2)(b) was seated on the steps. Lt. Meyer had no other reason to suspect this.

Lt. Meyer stopped the police vehicle, exited, and approached § 87(2)(b). As Lt. Meyer approached § 87(2)(b) stood up from the steps and appeared to be attempting to walk away in the direction of § 87(2)(b). When Lt. Meyer was within two or three feet of § 87(2)(b) he asked for his identification. § 87(2)(b) did not respond to this request, but continued to move in the direction of § 87(2)(b). Lt. Meyer therefore grabbed § 87(2)(b) and pushed him back-first against the wall in front of § 87(2)(b) to hold him in place.

PO Sanchez (BR 39) corroborated Lt. Meyer's account that § 87(2)(b), and more generally the block of § 87(2)(b) is drug-prone. PO Sanchez had, at the time of this incident, worked in the command for approximately nine and a half years. PO Sanchez had made narcotics-related arrests at the location before. PO Sanchez added that the time of this incident, approximately 8:40 p.m., is a time of increased drug activity. PO Sanchez knows this because he has looked at the times of previous arrests at that location, as well as the times of 911 calls and other complaints they receive about drug activity in the area, and they tend to occur around this time. PO Sanchez also routinely reviews complaint reports to look for crime patterns as part of his Anti-Crime duties.

PO Sanchez drove past § 87(2)(b) with Lt. Meyer and observed § 87(2)(b) sitting upright directly in the middle of the steps in front of § 87(2)(b). PO Sanchez observed one person exit the building and walk around § 87(2)(b) to move past him. PO Sanchez did not hear if the individual coming out of the building said anything to § 87(2)(b). Aside from observing this individual walk around § 87(2)(b) PO Sanchez had no indication that § 87(2)(b) was blocking the steps.

PO Sanchez and Lt. Meyer stopped the vehicle. PO Sanchez was intending to approach § 87(2)(b) to ask why he was sitting on the stoop. PO Sanchez wanted to know why § 87(2)(b) was sitting in front of a drug-prone location. § 87(2)(b) was also committing the violation of

disorderly conduct: obstructing pedestrian traffic by sitting in front of the location. PO Sanchez did not have any conversation with Lt. Meyer about § 87(2)(b) before they approached him. PO Sanchez primarily intended to speak to § 87(2)(b) with the knowledge that § 87(2)(b) could be issued a summons for the disorderly conduct violation if they felt it was necessary. PO Sanchez, who was interviewed six days before Lt. Meyer, made no mention of any complaints from residents of that building regarding drug dealers charging tolls for entry.

As PO Sanchez and Lt. Meyer approached the building, § 87(2)(b) stood up from the steps and began walking away. This led PO Sanchez to believe that § 87(2)(b) had noticed the officers and was trying to evade them. Lt. Meyer told § 87(2)(b) to stop, and began to ask for his identification. When § 87(2)(b) did not stop walking away, Lt. Meyer grabbed him and again asked for his identification. PO Sanchez did not remember § 87(2)(b) providing his identification at the scene where he was arrested and did not recall § 87(2)(b) in any way responding to Lt. Meyer.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof: he obstructs vehicular or pedestrian traffic. NYS Penal Law § 240.20, Subsection 5 (BR 40) The disorderly conduct statute applies only to where the offensive conduct is public in nature, and causes inconvenience, annoyance, or alarm to a substantial segment of the public, or be of such nature and character that it would appear beyond a reasonable doubt that the conduct intentionally created a risk that a breach of the peace was imminent. People v. Hill, 303 N.Y.S.2d 65 (1969) (BR 41); People v. Richards, 869 N.Y.S.2d 731 (2008) (BR 42)

An officer may only stop a person if he reasonably suspects that person is committing, has committed, or is about to commit a crime. People v. De Bour, 40 N.Y.2d 210 (1976) (BR 43)

A request for information is a general, non-threatening encounter in which an individual is approached for an articulable reason and asked briefly about his or her identity, destination, or reason for being in the area. Once the police officer's inquiry focuses on the possible criminality of the person approached, and where the person might reasonably believe from the officer's questions that he or she is suspected of some wrongdoing, the encounter rises to the level of a common-law inquiry, which must be supported by founded suspicion that criminality is afoot. People v. Hollman, 79 N.Y.2d 181 (1992) (BR 44)

Innocuous behavior, even in a high crime area, does not provide reasonable suspicion. People v. Hampton, 200 A.D.2d 466 (1994) (BR 45)

Knowledge of a person's past record can be considered a relevant factor in determining whether a police officer's conduct during an encounter is reasonable, provided there is also some present indication of criminality based upon observable conduct or reliable hearsay information. People v. Boulware, 130 A.D.2d 370 (1987) (BR 46)

Reasonable suspicion of criminality is required for police pursuit. Flight alone, or even in conjunction with equivocal circumstances, is insufficient to justify police pursuit. People v. Holmes, 81 N.Y.2d 1056 (BR 47)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is consequently recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C – Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Lawrence Sanchez spoke discourteously to § 87(2)(b)

Allegation I – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer spoke discourteously to § 87(2)(b)

Allegation M – Discourtesy: At the 41st Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

Allegation N – Abuse of Authority: At the 41st Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.

Allegation O – Abuse of Authority: At the 41st Precinct stationhouse, an officer used physical force against § 87(2)(b)

In his telephone statement, § 87(2)(b) alleged that when he asked the officers why § 87(2)(b) had been stopped, PO Sanchez replied, “I don’t need to tell you shit.”

§ 87(2)(b) alleged that later on scene, PO Sanchez told him, “I told y’all to back the fuck up and you didn’t back the fuck up so all y’all are going to jail.”

§ 87(2)(b) alleged that before Lt. Meyer pepper sprayed him, Lt. Meyer told him to “Shut the fuck up.”

§ 87(2)(b) further alleged that while in the holding cells inside of the 41st Precinct stationhouse, he requested to be brought to the bathroom. When officers did not immediately respond, § 87(2)(b) grew more insistent. An officer told him, “Hold the fuck on,” and, “Wait a fucking minute.” This officer also told § 87(2)(b) that he would “fuck § 87(2)(b) up.” As

this officer placed § 87(2)(b) into handcuffs so that he could be escorted to the bathroom, he also allegedly kned § 87(2)(b) once in his groin and twice in his face.

None of these allegations are documented on video footage or other independent evidence.

§ 87(2)(g) it is recommended that **Allegation C, I, M, N, and O** be closed as **victim uncooperative**.

Allegation D – Abuse of Authority: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer arrested § 87(2)(b)

Allegation E – Force: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer used physical force against § 87(2)(b)

Allegation F – Force: At § 87(2)(b) in the Bronx, PO Lawrence Sanchez used physical force against § 87(2)(b)

Allegation G – Force: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer used pepper spray against § 87(2)(b)

It is not disputed that Lt. Meyer and PO Sanchez brought § 87(2)(b) onto the ground in the course of effecting his arrest. § 87(2)(g)

In his telephone statement (BR 28), § 87(2)(b) alleged that while Lt. Meyer held him against the wall in front of § 87(2)(b), he took out his canister of pepper spray. Lt. Meyer appeared to be about to pepper spray § 87(2)(b) and § 87(2)(b) instructed § 87(2)(b) to close his eyes. § 87(2)(b) did so. Lt. Meyer and PO Sanchez then brought § 87(2)(b) front-first onto the ground. Once § 87(2)(b) was on the ground, Lt. Meyer bent down and sprayed § 87(2)(b) in his face with the pepper spray. § 87(2)(b) denied that he was resisting or “doing anything.”

§ 87(2)(b) did not cooperate with the investigation, and the investigation was consequently unable to obtain further clarifying information, or access any possible medical records for § 87(2)(b) generated from EMS’ treatment of him at the 41st Precinct stationhouse. The only documentation of any medical treatment provided to § 87(2)(b) is his Medical Treatment of Prisoner Form (BR 54), which simply notes that he has a history of asthma.

§ 87(2)(b) (BR 30-32) saw Lt. Meyer and PO Sanchez bring § 87(2)(b) onto the ground. Once § 87(2)(b) was face-down on the ground, Lt. Meyer pepper sprayed him. § 87(2)(b) saw § 87(2)(b) holding his arms and body stiff, but did not see him actively resist or make contact with any officer.

§ 87(2)(b) (BR 33-35) said that after she gathered on scene with § 87(2)(b) and § 87(2)(b) she heard Lt. Meyer tell § 87(2)(b) multiple times to get on the ground. § 87(2)(b) did not comply with these instructions. Lt. Meyer and PO Sanchez pulled § 87(2)(b) front-first to the ground. Once § 87(2)(b) was positioned on his face on the ground, Lt. Meyer pepper sprayed him.

§ 87(2)(b) (BR 36) saw Lt. Meyer and PO Sanchez bring § 87(2)(b) onto the ground. § 87(2)(b) saw Lt. Meyer reaching for his pepper spray, but did not allege that he ever used it against § 87(2)(b). As was previously discussed, § 87(2)(b) did not cooperate with the investigation and further information could not be obtained from him.

Although § 87(2)(b) did not cooperate with the investigation, video footage recorded by § 87(2)(b) on her cell phone (see video file labeled 2016-10-28_14-12-18) does depict the

encounter between Lt. Meyer and § 87(2)(b). The video begins with Lt. Meyer holding § 87(2)(b) by the front of his shirt, so that § 87(2)(b)'s back is up against the wall in front of § 87(2)(b). Lt. Meyer's back is to the camera. PO Sanchez has his back to Lt. Meyer, facing the street. § 87(2)(b) and § 87(2)(b) are both on scene. By 00:26 seconds, § 87(2)(b) has walked around to Lt. Meyer's right side, coming within approximately five feet of him. Lt. Meyer is visible at this time holding § 87(2)(b) by the front of his jacket by both hands, while § 87(2)(b)'s hands are on each of Lt. Meyer's forearms, near his elbows. A push-and-pull struggle occurs between Lt. Meyer and § 87(2)(b). PO Sanchez approaches to tell § 87(2)(b) to step back. § 87(2)(b) moves around PO Sanchez to stand to the left of Lt. Meyer at a distance of about 10 feet. By 00:55 seconds, Lt. Meyer is still holding the front of § 87(2)(b)'s shirt. § 87(2)(b) has moved his hands so that they are interlocked and are resting on the front of § 87(2)(b)'s waistband. At 00:56 seconds, Lt. Meyer reaches for and takes out his pepper spray. Lt. Meyer begins to shake the pepper spray canister. At 1:10 minutes, § 87(2)(b) lifts both of his hands to cover his eyes. Lt. Meyer and PO Sanchez then pull § 87(2)(b) forward by his arms onto the ground. § 87(2)(b) catches his fall by extending his right hand outwards to the ground. Lt. Meyer grips his right arm around his bicep and pulls it backwards. § 87(2)(b) lands on his front with his head turned to his left side, away from Lt. Meyer, who is by this time positioned at § 87(2)(b)'s right side. By 1:17 minutes, Lt. Meyer is visible holding the canister of pepper spray in his hand, behind § 87(2)(b)'s head, but it is not possible to determine if he discharges it, as no discharge is visible nor any sound of the spray audible; moreover, if he did discharge it, it would have made contact only with the back of § 87(2)(b)'s head. At 1:18 minutes, Lt. Meyer puts the canister down on the sidewalk.

Lt. Meyer (BR 37-38) said that upon approach to § 87(2)(b) he requested § 87(2)(b)'s identification. § 87(2)(b) attempted to walk away. Lt. Meyer gripped § 87(2)(b) by both of his arms and held him pressed with his back against the wall in front of § 87(2)(b). § 87(2)(b) did not say anything, but held his body stiff and held onto Lt. Meyer's arms. Lt. Meyer told § 87(2)(b) to stop resisting, which had no effect. § 87(2)(b) at no point made any attempt to provide his identification. Because § 87(2)(b) did not comply with the attempt to obtain his identification, Lt. Meyer considered him to be under arrest for disorderly conduct: obstructing pedestrian traffic. Lt. Meyer did not want to begin handcuffing § 87(2)(b) until additional units arrived for safety reasons, as immediately after § 87(2)(b) was stopped, § 87(2)(b) and § 87(2)(b) gathered on scene. Once additional units were requested, PO Sanchez approached and aided Lt. Meyer in bringing § 87(2)(b) who continued to resist, onto the ground so that he could be handcuffed. Lt. Meyer believed that he did not take out his pepper spray at this time, though he was not certain. Lt. Meyer was certain that he did not use his pepper spray against § 87(2)(b).

PO Sanchez (BR 39) said that once the stop of § 87(2)(b) was effected, § 87(2)(b) and § 87(2)(b) gathered. PO Sanchez focused upon keeping them at a safe distance from the scene, and did not see the interaction between Lt. Meyer and § 87(2)(b). PO Sanchez eventually requested an additional unit and then went to assist Lt. Meyer with handcuffing § 87(2)(b). § 87(2)(b) refused to be handcuffed by pulling his hands back from the officers and refusing to place his hands behind his back. PO Sanchez ordered § 87(2)(b) to place his hands behind his back. PO Sanchez did not remember Lt. Meyer issuing any verbal instructions to § 87(2)(b). PO Sanchez and Lt. Meyer then brought § 87(2)(b) front-first to the ground. PO Sanchez did not believe Lt. Meyer had his pepper spray out and did not believe Lt. Meyer used his pepper spray against § 87(2)(b).

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof: he obstructs vehicular or pedestrian traffic. NYS Penal Law § 240.20, Subsection 5 (BR 39) The disorderly conduct statute applies only to situations that carry beyond the concern of individual disputants to a point where they have become a potential or immediate breach of the peace or public problem. People v. Richards, 869 N.Y.S.2d 731 (2008) (BR 42)

Officers may not use anything more than the reasonable force necessary to gain control of a subject. Patrol Guide Section 221-02 (BR 49)

Pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody. Active resistance is defined as including physically evasive movements to defeat a member of service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody. Patrol Guide Section 221-07 (BR 50)

§ 87(2)(g)

As such, it is recommended that **Allegation D** be closed as **substantiated**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **exonerated**.

§ 87(2)(g)

As such, it is recommended that **Allegation G** be closed as **exonerated**.

Allegation H – Abuse of Authority: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer arrested § 87(2)(b) and § 87(2)(b)

Allegation J – Force: At § 87(2)(b) in the Bronx, Lieutenant Raymond Meyer used pepper spray against § 87(2)(b) and § 87(2)(b)

It is not disputed that § 87(2)(b) and § 87(2)(b) were all arrested for obstructing governmental administration in the second degree; § 87(2)(b) and § 87(2)(b) were also charged with resisting arrest. § 87(2)(b) was later found to have an open warrant. It is also not disputed that Lt. Meyer used pepper spray against § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) (BR 33-35) said that as she returned to § 87(2)(b) from the store, she saw Lt. Meyer holding § 87(2)(b) in front of the location. § 87(2)(b) approached, took out her cell phone, and began recording the incident, as did § 87(2)(b) § 87(2)(b) estimated that there were, in total, approximately 20 to 25 other civilians outside at the time, many of whom,

including her, asked why Lt. Meyer was treating § 87(2)(b) that way. Other individuals told § 87(2)(b) not to resist. § 87(2)(b) estimated that the group came within about two or three feet of Lt. Meyer and § 87(2)(b).

Additional officers began to arrive. When they arrived, Lt. Meyer said, “Arrest all of them.” § 87(2)(b) began walking backwards away from § 87(2)(b) on the sidewalk in the direction of § 87(2)(b). Lt. Meyer followed § 87(2)(b) so that they faced one another. Neither § 87(2)(b) nor § 87(2)(b) was still holding their cell phones, as an officer who § 87(2)(b) could not in any way identify or describe had snatched the phones from them. Without first giving any warning, Lt. Meyer pepper sprayed § 87(2)(b) and other individuals, including § 87(2)(b) and § 87(2)(b). § 87(2)(b) covered her face to block the spray. § 87(2)(b) eyes were also protected somewhat by the glasses she wore. § 87(2)(b) was then placed into handcuffs.

§ 87(2)(b) (BR 30-32) said that once Lt. Meyer approached, he exited his vehicle and came within about 10 feet of where Lt. Meyer and § 87(2)(b) were standing (in his telephone statement, § 87(2)(b) said he was about three or four feet from Lt. Meyer). § 87(2)(b) and § 87(2)(b) also approached. All of them said, “Relax. He’s a minor. Get off of him... Why you grabbing him?” § 87(2)(b) also told § 87(2)(b) “Calm down. Just relax. Don’t resist. We got it recorded. You’ll be okay.” PO Sanchez told § 87(2)(b) and § 87(2)(b) to back up. § 87(2)(b) complied. § 87(2)(b) took out his cell phone and began recording. When Lt. Meyer took out his pepper spray, § 87(2)(b) and § 87(2)(b) all instructed him to shut his eyes, which he did.

§ 87(2)(b) was then handcuffed. After he was handcuffed, Lt. Meyer stood up and said, “Take them,” or, “Arrest all of them.” § 87(2)(b) protested, “What? What’s all this for?” § 87(2)(b) and § 87(2)(b) began backpedaling from the scene together. § 87(2)(b) also fled, but in a different direction, or closer to the street. Lt. Meyer followed § 87(2)(b) and § 87(2)(b) facing them at a distance of about four or five feet. Without giving a verbal warning, Lt. Meyer pepper sprayed both § 87(2)(b) and § 87(2)(b). Lt. Meyer then turned away to run after § 87(2)(b) who he also pepper sprayed.

§ 87(2)(b) (BR 36) said that when he came out of § 87(2)(b), Lt. Meyer had already stopped § 87(2)(b), § 87(2)(b) and § 87(2)(b) were present, as were approximately three passersby, none of whom became involved in this incident. § 87(2)(b) asked the officers what happened, but they did not explain themselves. § 87(2)(b) and § 87(2)(b) began recording on their cell phones. § 87(2)(b) and § 87(2)(b) maintained a distance of about 5 to 10 feet from the officers, and were allowing them to do their jobs.

Once additional officers arrived, Lt. Meyer said, “Arrest them all.” § 87(2)(b) fled on foot towards § 87(2)(b). As he fled, Lt. Meyer used his pepper spray against him. § 87(2)(b) was then handcuffed.

As was previously discussed, § 87(2)(b) did not cooperate with the investigation and therefore no in-person statement could be obtained from him.

§ 87(2)(b) (BR 20) denied seeing how § 87(2)(b) and § 87(2)(b) were arrested, as he had already been placed into PO Sanchez’ and Lt. Meyer’s vehicle for transport to the 41st Precinct stationhouse by that time.

The video provided by § 87(2)(b) (see above file labeled 2016-10-28_14-12-18) shows § 87(2)(b) with his back up against the wall in front of § 87(2)(b). Lt. Meyer is holding him in place. PO Sanchez is standing between Lt. Meyer and § 87(2)(b) speaking into his police radio. At 00:10 seconds, a male in a dark jacket, identified by § 87(2)(b) during her CCRB interview as § 87(2)(b) crosses from the left side of the frame to the right saying,

“Don’t put your hands on me,” while PO Sanchez tracks him, saying, “Get back.” At 00:11 seconds, a second male, identified by the investigation as § 87(2)(b) (the multi-color sweatshirt § 87(2)(b) wears matches that depicted in his arrest photograph; during her CCRB interview, upon reviewing the footage, § 87(2)(b) identified him as § 87(2)(b) is depicted standing to § 87(2)(b)’s left, in front of the steps of § 87(2)(b), holding his cell phone out in his hands.

Video footage (see above file labeled 2016-10-28_14-12-18) reflects that § 87(2)(b) and § 87(2)(b) did raise their voices, use profanity (at 00:13 seconds, § 87(2)(b) can be heard saying, “He’s a fucking minor”), insult the officers (at 00:42 seconds, an unidentified male voice says, “Fucking corny-ass cop”). It also reflects that PO Sanchez did tell § 87(2)(b) to “Get back,” and that he later, or at 00:15 seconds, twice told § 87(2)(b) to step back.

However, at no point in the video footage do the civilians ever physically interfere in the stop. At no point do they use any threatening language. § 87(2)(b) responded to PO Sanchez’s order to get back by saying, “I will step back,” indicating a willingness to comply. § 87(2)(b) also appears to get back when instructed to do so.

At 00:57 seconds, Lt. Meyer and PO Sanchez bring § 87(2)(b) onto the ground. At 1:16 minutes, an unidentified uniformed officer arrives and begins ordering the group verbally to step back, which they appear to do. At 1:24 minutes, Lt. Meyer stands up from the ground and says, “Take all of them.” The video ends at 1:30 minutes. Lt. Meyer’s use of pepper spray is not depicted in the video footage.

Lt. Meyer (BR 37-38) said that he was aware that a group gathered at the scene because he heard PO Sanchez saying, “Get back,” and heard the people in the group yelling, “What are you doing? He wasn’t doing nothing.” The group came within a few feet of Lt. Meyer, but did not make physical contact with him or with § 87(2)(b) or come closer than a few feet. The way the group behaved led Lt. Meyer to fear for his safety in particular because of the violence-prone nature of the location.

After § 87(2)(b) was handcuffed on the ground and additional units began to arrive, Lt. Meyer stood up and saw that there were three members in the group that gathered, identified as § 87(2)(b) and § 87(2)(b). Lt. Meyer thought there may have been additional individuals who gathered on the block to observe the incident, but they did not come as close to the scene as § 87(2)(b) and § 87(2)(b). The group was standing on the sidewalk approximately two feet from Lt. Meyer. Lt. Meyer began telling the group to get back. The group ignored these instructions. Lt. Meyer at this time considered all three members of the group to be under arrest for obstructing governmental administration for the way that they had interfered in the stop of § 87(2)(b) and refused instructions to back up.

§ 87(2)(b) had resisted his arrest, which led Lt. Meyer to believe that the three people in this group might also physically resist. Further, the members of the group had “bladed” their bodies away from Lt. Meyer, which further led him to believe they might provide resistance. Lt. Meyer consequently sprayed his pepper spray at each of the three members of this group in succession, using brief bursts. Lt. Meyer provided no warning before doing so because the group had already ignored his previous instructions to back up.

PO Sanchez (BR 39) confirmed that shortly after Lt. Meyer stopped § 87(2)(b) and § 87(2)(b) gathered on scene. PO Sanchez did not remember if any other civilians gathered on scene. PO Sanchez stood on the middle of the sidewalk with his back to Lt. Meyer. § 87(2)(b) and § 87(2)(b) came within about an arm’s length of

PO Sanchez. PO Sanchez noted that at least one of these three individuals – he could not recall which – was recording the incident. PO Sanchez told the three of them to step back multiple times. At one point, the three of them complied with this instruction, though they later returned to stand within an arm’s length of PO Sanchez. At one point, either § 87(2)(b) or § 87(2)(b) – PO Sanchez could not recall which – walked around in front of PO Sanchez to approach Lt. Meyer from the side. PO Sanchez walked to the right and pushed him back to prevent him from making contact with Lt. Meyer.

PO Sanchez requested additional units to the scene, and then aided Lt. Meyer in handcuffing § 87(2)(b). Once § 87(2)(b) was handcuffed, PO Sanchez escorted him to a police vehicle and lodged him inside. PO Sanchez did not see Lt. Meyer use pepper spray against § 87(2)(b) or § 87(2)(b).

None of the other officers who responded to the scene and were interviewed by the investigation, including Sgt. Miroslav Maric, PO Wojciech Czech, PO Jose Torres, saw Lt. Meyer use his pepper spray.

A person is guilty of obstructing governmental administration in the second degree when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function by means of intimidation, physical force or interference, or by means of any independently unlawful act. NYS Penal Law, § 195.05 (BR 51)

None of the following constitutes probable cause for arrest or detention of an onlooker unless the safety of officers or other persons is directly endangered, or the officer reasonably believes they are endangered, or the law is otherwise violated: speech alone, even if crude and vulgar; taking photographs, videotapes, or recordings; or remaining in the vicinity of the stop or arrest. Patrol Guide Section 208-03 (BR 52)

In order to sustain a conviction for the charge of obstructing governmental administration it must be established that the police were engaged in authorized conduct, and that the defendant’s acts were committed with the intent to prevent the officers from performing a lawful duty. People v. Greene, 221 A.D.2d 559 (BR 53)

Pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody, or to establish physical control of a subject attempting to flee from arrest or custody. Patrol Guide Section 221-07 (BR 50).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation H** be closed as **substantiated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation J** be closed as **exonerated**.

Allegation K – Abuse of Authority: At the 41st Precinct stationhouse, Lieutenant Raymond Meyer strip-searched § 87(2)(b)

Allegation L – Force: At the 41st Precinct stationhouse, Lieutenant Raymond Meyer used physical force against § 87(2)(b)

In his telephone statement, § 87(2)(b) (BR 28) alleged that officers upon arrival at the 41st Precinct stationhouse brought him to a cell at the back of the stationhouse and attempted to strip-search him. § 87(2)(b) physically resisted this strip search. Officers reacted to § 87(2)(b)'s resistance by slamming him against a bench. Lt. Meyer positioned himself on top of § 87(2)(b)'s chest to hold him down while he ripped his pants off. § 87(2)(b) was left in a cell while wearing only his boxers. § 87(2)(b) began to have an § 87(2)(b), and began wheezing. EMS arrived, but gave § 87(2)(b) no treatment aside from rubbing their hands upon his chest. Officers then dragged § 87(2)(b) along the ground from the rear cells to the front cells, where § 87(2)(b) and § 87(2)(b) were.

As was previously discussed, § 87(2)(b) abruptly terminated his telephone statement, and the investigation was never again able to establish contact with § 87(2)(b). As such, no further details and no in-person statement could be obtained from him. Unlike the previous allegations made on behalf of § 87(2)(b) these allegations are not captured on video footage.

§ 87(2)(g)

As such, it is recommended that **Allegations K and L** be closed as **victim uncooperative**.

Squad:

Investigator: _____

Signature

Print

Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date